

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 24, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MICHAEL CEREMELLO v CITY OF DIXON
Case No. CU25-03432**

Court Trial

TENTATIVE RULING:

This matter will be decided on the briefs, file and oral argument. Parties to appear for oral argument. Remote appearances are authorized.

On September 22, 2026, the parties filed a stipulation as to facts. Other than filings directly ordered by the court, no other filings related to this decision shall be made without leave of court. The court appreciates the efforts of the parties to simplify this matter but the parties must also appreciate filing deadlines are also for the benefit of the court.

Please review the 2025 amendment to Revenue and Taxation Code section 7265.

Additionally, CITY shall supplement the record with the actual December 12, 2024, communication from the California Department of Tax and Fee Administration ("CDTFA"), as presumably such communication was in writing.

The court believes an interpretation of the 2024 version of Revenue and Taxation Code section 7265 to require CITY action to certify the election results and to adopt an ordinance no later than December 12, 2024, was erroneous and not mandated by the terms of the 2024 statute. Such an interpretation is additionally unreasonable in light of the extremely narrow time frame between an election, canvass and certification of election results (in this case 6 working days). The ability of a public entity to certify an

election approving a local sales tax increase and to adopt an ordinance to implement the results in such a short time frame would preclude a city from taking action at its regular meeting (unless one was already serendipitously scheduled) and would necessitate a special meeting. In this case, the court understands the CITY's regular meeting was on December 3, 2024.

The conclusion that an interpretation requiring city action by December 12 was in error is further supported by the 2025 amendment to Section 7265.

Whether a violation is likely to be continuous or ongoing is one of the issues in this suit.

CANNOVA vs. PACIFIC GAS AND ELECTRIC COMPANY, et al.
Case No. CU25-11883

PACIFIC GAS AND ELECTRIC COMPANY'S NOTICE OF MOTION AND MOTION TO STRIKE PUNITIVE DAMAGES

TENTATIVE RULING

This motion to strike seeks to strike allegations in a pleading that is not yet before the court.

In early February, Defendant filed an answer to the original complaint filed by Plaintiff.

A plaintiff can amend without leave of court only if no answer has been filed, or if a demurrer is filed, before the deadline for opposition to the demurrer. C.C.P. §472(a).

The court is aware that during the brief period of time this case had been removed to federal court, the parties filed a stipulation, approved to some degree by the federal court magistrate, to allow Plaintiff to file a first amended complaint which was purportedly attached to the stipulation, as part of the process of returning the case to state court. While a copy of that stipulation and order is in the court's electronic file, no copy of the proposed first amended complaint is attached to it. Furthermore, from Plaintiff's opposition, it appears that the proposed first amended complaint was not filed, either in the federal court, nor in the present state court; and that Plaintiff instead, after this motion to strike was filed, unsuccessfully attempted to file a different version of a first amended complaint than had been attached to the stipulation.

Until Plaintiff obtains leave from this state court to file a first amended complaint, the operative pleading is the original complaint, which Defendant has already answered, and this motion to strike allegations in a first amended complaint is premature.

The court therefore declines to rule on this motion.

This renders moot Plaintiff's arguments in the opposition that the notice of motion failed to identify the date, time and place of hearing for this motion to strike, and misidentified the paragraphs containing punitive damage allegations Defendant was seeking to strike.

While declining to rule on this premature motion, the court offers the following observations, to aid both sides in any subsequent meet and confer efforts over any new proposed first amended complaint that Plaintiff might seek leave to file:

Civil Code §3294 allows for recovery of punitive damages "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice"

Assuming that the alleged termination of the employment of an employee for the improper purpose of discouraging employees from requesting medical leave and/or reporting workplace injuries could constitute oppression or malice (a reasonable assumption), a plaintiff seeking punitive damages against a corporate employer must also allege that the termination decision was made, authorized or ratified by a corporate officer, director, or managing agent. Civil Code §3294(b).

A managing agent is one who has substantial discretionary authority over decisions that ultimately determine corporate policy.

[T]he Legislature intended that principal liability for punitive damages not depend on employees' managerial level, but on the extent to which they exercise substantial discretionary authority over decisions that ultimately determine corporate policy. Thus, supervisors who have broad discretionary powers and exercise substantial discretionary authority in the corporation could be managing agents. Conversely, supervisors who have no discretionary authority over decisions that ultimately determine corporate policy would not be considered managing agents even though they may have the ability to hire or fire other employees. In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business. White v. Ultramar (1999) 21 Cal.4th 563, 576–577.

See also Colucci v. T-Mobile USA, Inc. (2020) 48 Cal.App.5th 442, 451.

At the very outset of a case, a plaintiff may not have any reason to know who made, authorized or ratified the decision to terminate the employment.

When the facts lie more in the knowledge of the defendant than the plaintiff, courts can excuse the plaintiff from the specificity in pleading ordinarily required. Tenet Healthsystem Desert, Inc. v. Blue Cross of California (2016) 245 Cal.App.4th 821, 838 [the requirement of specificity of alleging fraud against a corporation is reduced when the defendant must necessarily possess full information about the facts and the plaintiff cannot reasonably be expected to have access to that same information at time of pleading].

It is now almost eight months after the time Defendant filed its answer to the complaint.

Upon the general appearance of a defendant in a case, a plaintiff is authorized to conduct most types of discovery. See, e.g., C.C.P. §2025.210(b) [deposition notice can be served by a plaintiff on a defendant 20 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2030.020(b) [a plaintiff can propound interrogatories on a defendant 10 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2031.020(b) [same general appearance or 10 days after service threshold for propounding requests for production]; §2033.020(b) [same for propounding requests for admissions].

At this stage of the case, there would appear to be little excuse for a plaintiff not to have conducted the discovery necessary to properly allege the act at issue was made, authorized or ratified by a corporate officer, director, or managing agent who can be identified by name and/or title, if such facts exist. Any amended complaint failing to include such allegations would appear susceptible to a properly noticed and filed motion to strike by a corporate defendant.

TERCIERA HARGROVE v. ELISE SINDLINGER, ET AL.
Case No. CU26-01629

SINDLINGER's Demurrer

TENTATIVE RULING

Moving party to appear. The notice of motion fails to include notice of the court's tentative ruling system as required by Local Rule 3.9.

Defendant ELISE SINDLINGER demurs to Plaintiff TERCIERA HARGROVE's first amended complaint alleging breach of contract.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Breach of Contract. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The operative pleading does not allege the existence of a contract between Plaintiff and SIDLINGER. It alleges Plaintiff rented an apartment, but does not detail from whom, or on what terms. The operative pleading therefore does not allege in what way SINDLINGER breached a contract between the parties and thereby caused Plaintiff harm.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) Plaintiff has not filed opposition and so has not demonstrated how identified defects might be cured by amendment.

Conclusion. SINDLINGER's unopposed demurrer is sustained without leave to amend.

WALKER v. DOE, ET AL.
Case No. CU26-06540

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff's motion for a preliminary injunction is denied.

"No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc. § 527(a).) Notice had to be given by serving a noticed motion pursuant to Code of Civil Procedure section 1005. (Cal. Rules of Court, rule 3.1150(a); *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37.) The noticed motion had to be served on defendants at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).)

Plaintiff failed to serve any defendant with the motion papers. Proof of service of the motion papers had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002